

ANNEX XII

Views of the Human Rights Committee under Article 5 (4)
of the Optional Protocol to the International Covenant
on Civil and Political Rights

concerning

Communication No. 74/1980

Submitted by: Miguel Angel Estrella

Alleged victim: Miguel Angel Estrella

State party concerned: Uruguay

Date of communication: 17 July 1980 (date of initial letter)

Date of decision on admissibility: 25 March 1982

The Human Rights Committee, established under article 28 of the International Covenant on Civil and Political Rights,

Meeting on 29 March 1983,

Having concluded its consideration of communication No. 74/1980, submitted to the Committee by Miguel Angel Estrella under the Optional Protocol to the International Covenant on Civil and Political Rights,

Having taken into account all written information made available to it by the author of the communication and by the State party concerned,

adopts the following:

VIEWS UNDER ARTICLE 5 (4) OF THE OPTIONAL PROTOCOL

1.1 The author of the communication (initial letter dated 17 July 1980 and further submissions dated 8 November 1980, 9 and 15 July 1981 and 1 October 1982) is an Argentine national, concert pianist by profession, at present living in France.

1.2 The author states that he became a member of the Movimiento Peronista in Argentina in 1966 because he wished to contribute to the wider dissemination of knowledge, in his case of music, among the deprived sectors of the population. His activities, which were unpaid, involved giving courses, lectures and public concerts. These activities were allegedly considered to be "subversive" by the new military Government which came to power in Argentina in 1976. In April 1977, the author found that his name was on a list of Argentine intellectuals who could not participate in activities under the bilateral agreements which his country had signed with other States and that he had been denounced as "a subversive member of the Montoneros Organization". a/ The author requested an investigation into these accusations and, on 7 December 1977, he was officially informed that no charges had been retained against him and that he could therefore exercise his profession freely and participate under bilateral agreements.

1.3 The author explains that in 1977 he agreed to work in Montevideo, Uruguay, where he had been invited to give concerts and also refresher courses for Uruguayan pianists and that he lived there most of the time with his two sons and three Argentine friends, Raquel Odasso, Luisana Olivera and Luis Bracony, in a house that he had rented. His friends were also working in Montevideo. In May 1977, the author's engagements with the SODRE b/ Symphony Orchestra were suddenly cancelled and some weeks later he was officially informed by a Colonel (name is given) that he was under observation in Uruguay, that unfavourable reports had been received about him, that his position as a Peronist made it obvious that he was opposed to the Uruguayan Government, that however he had no recorded political activities in Uruguay and that so long as that situation did not change his safety was not in jeopardy. He was free to give private lessons to local pianists, but was told that he could not carry out any official concert or teaching activity. The author's concerts at the University were cancelled and a proposed professorship at the conservatory was withdrawn.

1.4 The author states that in November 1977 he toured Mexico and Panama. He then stayed in Buenos Aires from 5 to 10 December 1977 and on 10 December he went to Montevideo to bring his children back and to hand over the house he had rented. His intention was to move to Buenos Aires and spend some time in his country before travelling to Mexico and Canada on work assignments. He further states that when he reached Montevideo, on 10 December 1977, he found at his house an old friend, Carlos Valladares, allegedly a well-known Montonero leader. The author states in this connection:

"My friendship with him was of very long standing because he had worked with my father selling books. I invited him to dinner with me and my family and he left my house at midnight. He was also present the following day at a farewell lunch that I held at my home. Valladares left the same evening and I never saw him again."

The author mentions that from 11 December 1977 he noticed that he was constantly followed. However, as he was preparing his departure, this fact did not greatly disturb him. On 15 December, he completed the necessary customs and banking procedures and purchased the tickets to travel to Buenos Aires.

1.5 The author claims that on the evening of 15 December 1977, Raquel Odasso and Luisana Olivera were abducted only a few yards from his home in Montevideo. He was told about this incident by his neighbours who, despite the fact that the house was surrounded by a growing number of vehicles with armed individuals, showed total solidarity with him and helped him to get in touch with diplomat friends and colleagues. The author further claims:

"I was reassured by the fact that the people with whom I had managed to get into contact promised to ensure that these abnormal events were immediately made known abroad After 11 p.m., some 15 strongly armed individuals in civilian clothes broke in, threatening us with death if we did not surrender. Bracony and I had remained in the house. We came out with our hands up, trying to tell them that there was no need for any violence. They punched and kicked me and knocked me down, chaining my feet and hands, and then blindfolded me, pulled a hood over my head and pushed me towards a vehicle where they began to kick me all over."

The author alleges that they were brought to a place probably near the airport where he recognized the voices of Raquel Odasso and Luisana Olivera.

1.6 The author claims that in that place the four of them were subjected to torture:

"The tortures consisted of electric shocks, beatings with rubber truncheons, punches and kicks, hanging us up with our hands tied behind our backs, pushing us into water until we were nearly asphyxiated, making us stand with legs apart and arms raised for up to 20 hours, and psychological torture. The latter consisted chiefly in threats of torture or violence to relatives or friends, or of dispatch to Argentina to be executed, in threats of making us witness the torture of friends, and in inducing in us a state of hallucination in which we thought we could see and hear things which were not real. In my own case, their point of concentration was my hands. For hours upon end, they put me through a mock amputation with an electric saw, telling me, 'we are going to do the same to you as Víctor Jara.' c/ Amongst the effects from which I suffered as a result were a loss of sensitivity in both arms and hands for eleven months, discomfort that still persists in the right thumb, and severe pain in the knees. I reported the fact to a number of military medical officers in the barracks and in the 'Libertad' prison."

The author alleges that he was interrogated for the purpose of forcing him to admit that he had been involved in plans to carry out armed operations in Uruguay and Argentina. He was repeatedly asked why he did not denounce Valladares and at one moment his interrogator allegedly said: "I keep telling you you are unlucky. We know that you were not involved in this matter, but you are going to pay dearly for the fact that you let Montoneros come into your house."

1.7 On 23 December 1977, the author was transferred to a military barracks, probably of Batallón 13, where he was kept blindfolded up to 20 January 1978 and subjected to ill-treatment during almost a month. The author mentions the following:

"During my stay there, I suffered almost constantly from vomiting, diarrhoea and other digestive disorders, the result not merely of the state of insecurity I was in, but also the lack of hygiene and the food. I never received even the most rudimentary medical attention there. I was repeatedly threatened with death by an officer, who, on one occasion lifted my hood to hit me in the face; he was a lieutenant. He was beside himself with anger because I had been demanding insistently to be given a shower and to wash my clothes, which bore the marks of my intestinal problems and of torture. Other occasions on which I provoked his fury were when I asked the guards for medical attention, or to be allowed to write a letter to my family, to have news of what had happened to my children, for permission to attend Mass at Christmas or to see my family. ..."

On 20 January 1978, the author was taken to Libertad prison. He spent the first 10 days in solitary confinement in a cell which was a kind of cage in a section known as "La Isla". There he received visits from a military doctor. As he had lost 10 kilos, the doctor requested a special diet for him, which was refused. On 5 February his life as a prisoner became "normal". From that time he was kept in the cells (first floor A) and on that day he was able for the first time to walk in the open air for an hour and to have contact during that period with a fellow prisoner.

1.8 The author states that he was brought before a military court on three occasions (23 and 26 December 1977 and on 15 March 1978). On 23 December 1977, in the office where he was to see a court official, the author's hood was taken off and he recognized several of the individuals who had abducted him and taken part in the torture. That day also, he was given the possibility to choose an officially appointed lawyer, "who is really an officer of the armed forces or a civilian employed by them", either Mr. Severino Barbé or Colonel Alfredo Ramírez. The author opted for Mr. Barbé, whom he saw on that day and on 31 May 1978, 14 November 1978 and 12 February 1980. From the outset, Mr. Barbé allegedly adopted the attitude of a prosecutor in his relations with the author, who claims that, as a result, he was in fact denied the possibility of an effective defence. In particular, he states that on 31 May 1978, Mr. Barbé once again questioned the author's innocence, arguing that he had been accused by his friends and that he had not denounced Mr. Valladares. The author states that he asked to be confronted with his friends stressing that their reports had been made under torture. He further states that, although Mr. Barbé did nothing to arrange confrontations or to improve the conditions under which he was being held, his friends and colleagues outside Uruguay helped to speed up the processing of his case.

1.9 The author mentions that on 9 November 1978 he was confronted with Luis Bracony and Luisana Olivera and on 14 November 1978 with Raquel Odasso who, in particular, retracted what she had been forced to sign against him. He states that on 29 August 1979 he was told by an official whom he met at the prison that he had been sentenced to four and a half years of imprisonment at a trial that was held in camera. That day the military court's judgement was read out to him, the basis for the verdict being the charges of "conspiracy to subvert, action to upset the Constitution and criminal preparations". The author further states that, on the morning of 12 February 1980, he and five other detainees were taken to Montevideo, "in the silence that is characteristic of any departure from prison". At the moment he and his friend Luis Bracony were brought into the courtroom of the Military Supreme Tribunal, he learned that there was going to be a trial. He states that his relatives were not allowed to attend the trial. He recalls that the military judge, Mr. Silva Ledesma, said that the charge of attempt to upset the Constitution could not be confirmed, that therefore they had served their sentences and that they would be expelled from the country for having exposed Uruguay to a risk of war against another State. The author further states that the following day, on 13 February 1980, he was suddenly taken to a punishment cell in "La Isla", but that around 7 p.m. he was driven to the Montevideo Police Headquarters. On 15 February 1980, he was taken to the airport, where he boarded an airplane bound for France.

1.10 In the second part of his communication (under cover of letters dated 9 and 15 July 1981), the author gives a detailed description of prison conditions at Libertad. He states, in particular, that five floors of the prison are divided into very small cells; that two detainees share each cell (except on the second floor, which is reserved for detainees held in solitary confinement); that these cells are so small that "when one detainee walks, the other has to sit"; that detainees are usually kept in their cells 23 hours per day, that they are not allowed to lie on their beds from 6.30 a.m. to 9 p.m. or to do any exercise and that they are allowed to go into the open air for only one hour per day, provided that they have not been punished. He further states that from time to time detainees are allowed by the prison authorities to carry out some activities such as painting walls, cleaning, cooking, distributing food or books in the cells, etc. He maintains that most detainees wish to carry out such tasks despite the

fact that they are continuously subjected to harassment by the prison guards. The author adds that, when detainees are carrying out these activities, they have to be very careful because they work in precarious safety conditions and accidents occur frequently. He gives the names of five detainees who suffered accidents while doing some work.

1.11 The author states that the reasons for punishment at Libertad prison are endless (for example, for calling a detainee by his name instead of using the number assigned to each detainee when entering at Libertad prison; for walking without having their hands behind their back; for looking directly at a prison guard; for trying to share food or clothes with a detainee; for drawing, for writing music, for not executing an order quickly enough, for asking too much, etc.). He recalls that he was punished over and over again for saying "hello" with a smile to other detainees while distributing their breakfast. Punishments may consist of withholding permission to go into the open air for one or several weeks, or a ban on receiving correspondence or the suppression of visits. He further states that punishments could be entirely arbitrary. He mentions that once he had to remain in solitary confinement in a punishment cell for one month because "a group of European friends" had come to see him and the prison authorities had decided not to allow the visit. When the author had completed his 30 days' punishment, he was forced to sign a paper stating that the reason for his punishment was that he had tried to assault a guard.

1.12 The author maintains that in fact a policy of arbitrary sanctions is continually applied for the purpose of generating moments of hope followed by frustration. He alleges that the whole system at Libertad is aimed at destroying the detainees' physical and psychological balance, that detainees are continuously kept in a state of anxiety, uncertainty and tension and that they are not allowed to express any feeling of friendship or solidarity among themselves. He claims that many detainees are psychologically ill and that the present psychologist, Mr. Britos, is largely responsible for the policy of repression prevailing at Libertad prison. "They are professionals, like Mr. Britos, who use their skills in order to render thousands of individuals in this small country which is Uruguay unfit for reintegration into normal society". The author further claims that the state of anxiety prevailing among detainees is largely due to shooting exercises by the prison guards and alarm warnings. Up to three times a day during alarms, detainees have to lie down on the floor wherever they are, face downward, hands over their heads and any movement could mean being shot by a prison guard. Shooting exercises are carried out in the prison yard and the dummy targets wear exactly the same uniforms as the prisoners. The author also maintains that even Sunday masses were discontinued in 1975 for being moments shared by most detainees and he expresses the hope that, in the future, detainees will be allowed to go to mass and to receive spiritual assistance.

1.13 The author states that the detainees' correspondence is subjected to severe censorship, that they cannot write to their lawyers or to international organizations and that prison officials who act as "censors" arbitrarily delete sentences and even refuse to dispatch letters. He claims that during his entire detention he was given only 35 letters, though he certainly received hundreds. During a seven-month period he was given none. He states that Lieutenant Rodriguez and Lieutenant Curruchaga asked him to sign for the receipt of letters which he never saw.

1.14 The author mentions that detainees are in principle allowed two monthly visits of 45 minutes each. All visitors (including women) are thoroughly searched before the visits. During these visits the prisoner and the visitors are in different rooms and they may communicate through a window; all conversation is taped, no reference can be made to current news, and at any moment prison guards may arbitrarily put an end to any visit. A feeling of tension is, therefore, always present.

1.15 The author emphasizes that, thanks to the international solidarity campaign organized on his behalf, he was a privileged detainee. In particular, he had the privilege of receiving some "special visits". For instance, in February 1979, he was suddenly taken to the third floor of the prison and pushed into a very nice cell with radio, tape-recorder and pictures of women on the walls. A few minutes later, the Deputy Governor of Libertad prison, Colonel H. Nieves, came in with a French lawyer, François Chéron. The author did not pay "too much attention" to the presence of prison officials while talking with Maître Chéron. He was afterwards punished for seven months (no mail, continuous harassment and searches, no recreation, etc.).

1.16 In the author's opinion, the prisoners suffer most from the total impossibility of being tried or defended "normally". He further alleges that individual freedoms and guarantees have been disregarded in Uruguay since 1973, that lawyers have been persecuted and imprisoned for defending persons considered as "anti-social" elements and that a new terminology has been created in judicial practice, mentioning as an example the concept of "moral conviction". He recalls in this connection an incident when one of his torturers said to him: "We know that you are not a guerilla; even if you do not want to sign a declaration that you are one, you will remain imprisoned for several years because we have the 'moral conviction' that you are guilty of thinking as you think."

1.17 The author does not specify which provisions of the Covenant have allegedly been violated in his case.

2. By its decision of 24 October 1980, the Human Rights Committee decided that, when the second part of the author's communication had been received, the communication would be transmitted under rule 91 of the provisional rules of procedure to the State party concerned, requesting information and observations relevant to the question of admissibility of the communication.

3. By a note dated 29 April 1981, the State party objected to the admissibility of the communication for the following reasons:

"The communication does not fulfil even the basic conditions for presentation to the Committee; in article 1 of the Optional Protocol, the competence of the Committee to receive and consider communications from individuals is recognized, provided that the communications fulfil the basic requirements of originating from individuals 'subject to [the] jurisdiction [of a State Party] who claim to be etc. ...'. In this connection it should be stated that, in the case referred to in this communication, the situation envisaged in the above-mentioned article does not arise. Once he had completed his sentence, Mr. Estrella was released and on 15 February 1980 left Uruguay for France, where he is now living; he is, therefore, outside the jurisdiction of the Uruguayan State. For these reasons, we consider that it is inappropriate for the Committee to deal with communications of this nature which run counter

to its terms of reference and violate provisions of international instruments. The Government of Uruguay will accordingly make no answer concerning the substance of the matter on the understanding that Mr. Estrella does not have the right of recourse to the mechanisms provided for in the International Covenant and the Optional Protocol."

By a further note dated 28 September 1981 the State party reiterated the position stated in its note of 29 April 1981.

4.1 When examining the question of admissibility of the communication, the Human Rights Committee observed that the author referred to events which allegedly took place in Uruguay from December 1977 to February 1980; that is, under the jurisdiction of Uruguay, and that the State party itself had admitted that Miguel Angel Estrella completed his sentence in Uruguay. The Committee recalled that by virtue of article 2 (1) of the Covenant, each State party undertakes to respect and to ensure to "all individuals within its territory and subject to its jurisdiction" the rights recognized in the Covenant. Article 1 of the Optional Protocol was clearly intended to apply to individuals subject to the jurisdiction of the State party concerned at the time of the alleged violation of the Covenant, irrespective of their nationality. This was manifestly the object and purpose of article 1. The Human Rights Committee further observed that the present communication fulfils the basic requirement of originating from an individual who claims that some of his rights have been violated by a State party to the Covenant and to the Optional Protocol and that, therefore, the alleged victim has the right of recourse to the mechanisms provided for in the International Covenant and the Optional Protocol.

4.2 With regard to article 5 (2) (a) of the Optional Protocol, the Human Rights Committee had the occasion in another case under the Optional Protocol, to ascertain that a case concerning Miguel Angel Estrella had been submitted to the Inter-American Commission on Human Rights (IACHR) as case No. 2570. By a further letter dated 8 November 1980, in reply to a request for clarification in this regard, Miguel Angel Estrella stated that he had no prior knowledge of case No. 2570 before the IACHR and, in spite of extensive inquiries on his part, he had been unable to find out who may have submitted that case to IACHR. He stated that he had, in this connection, contacted friends, relations and colleagues in several countries where committees had been formed with the aim of pleading for his release, but none of them could shed light on the matter. By letters dated 18 August and 18 November 1981, the secretariat of IACHR clarified that IACHR case No. 2570 concerning Miguel Angel Estrella was based on a complaint submitted by an unrelated third party on 21 December 1977 and that the case was still under consideration by IACHR.

4.3 The Committee observed that the provision of article 5 (2) (a) of the Optional Protocol, which lays down that the Committee cannot consider a communication under the Optional Protocol if the same matter is being examined under another procedure of international investigation or settlement, cannot be so interpreted as to imply that an unrelated third party, acting without the knowledge and consent of the alleged victim, can preclude the latter from having access to the Human Rights Committee. It therefore concluded that it was not prevented from considering the communication submitted to it by the alleged victim himself, by reason of a submission by an unrelated third party to IACHR. Such a submission did not constitute "the same matter", within the meaning of article 5 (2) (a).

4.4 With regard to article 5 (2) (b), on the basis of the information before it, the Committee was unable to conclude that in the circumstances of this case, there were effective remedies available to the alleged victim which he had failed to exhaust.

4.5 Accordingly, the Committee found that the communication was not inadmissible under article 5 (2) (a) or 5 (2) (b) of the Optional Protocol.

4.6 The Committee noted that the facts and allegations, as submitted by the author, appeared to raise issues under various provisions of the Covenant, including articles 7, 9, 10 and 14, the determination of which depended on an examination of the merits of the case.

5. On 25 March 1982, the Human Rights Committee therefore decided:

(a) That the communication was admissible;

(b) That, in accordance with article 4 (2) of the Optional Protocol, the State party should be requested to submit to the Committee, within six months of the date of the transmittal to it of this decision, written explanations or statements clarifying the matter and the remedy, if any, that may have been taken by it;

(c) That the State party should be informed that the written explanations or statements submitted by it under article 4 (2) of the Optional Protocol must relate primarily to the substance of the matter under consideration. The Committee stressed that, in order to perform its responsibilities, it required specific responses to the allegations which had been made by the author of the communication and the State party's explanations of the actions taken by it. The State party was requested, in this connection, to enclose copies of any court orders or decisions of relevance to the matter under consideration.

6. By a note dated 27 August 1982, the State party reiterated the position stated in its notes dated 29 April and 28 September 1981. No further explanations were received from the State party pursuant to the Committee's decision of 25 March 1982. The Committee is seriously concerned over the State party's failure to fulfil its obligations under article 4 (2) of the Optional Protocol.

7. In his comments, dated 1 October 1982, the author states that the events that he had reported: "job discrimination, persecution, kidnapping, torture, detention, irregular legal procedures", took place when he was residing legally in Uruguay and he was therefore subject to that country's jurisdiction.

8.1 The Human Rights Committee has considered the present communication in the light of all information made available to it by the parties as provided in article 5 (1) of the Optional Protocol. The Committee bases its views on the following facts, which, in the absence of any substantive clarifications from the State party, are unrefuted.

8.2 Miguel Angel Estrella decided in 1977 to work in Montevideo, Uruguay, and he lived there with his two sons and three Argentine friends, Raquel Odasso, Luisana Olivera and Luis Bracony, in a house that he had rented.

8.3 On 15 December 1977, at a time when the author was about to leave Uruguay, he and his friend, Luis Bracony, were kidnapped at his home in Montevideo by some 15 strongly armed individuals in civilian clothes. They were brought blindfolded to a place where he recognized the voices of Raquel Odasso and Luisana Olivera. There the author was subjected to severe physical and psychological torture, including the threat that the author's hands would be cut off by an electric saw, in an effort to force him to admit subversive activities. This ill-treatment had lasting effects, particularly to his arms and hands.

8.4 On 23 December 1977, the author was transferred to a military barracks, probably of Batallón 13, where he continued to be subjected to ill-treatment. In particular, he was threatened with death and he was denied medical attention. On 20 January 1978 he was taken to Libertad prison. He spent the first 10 days in solitary confinement in a cell which was a kind of cage in a section known as "La Isla". He remained imprisoned at Libertad until 13 February 1980.

8.5 At Libertad prison the author was subjected to continued ill-treatment and to arbitrary punishments including 30 days in solitary confinement in a punishment cell and seven months without mail or recreation and subjected to harassment and searches. His correspondence was subjected to severe censorship (see para. 1.13 above).

8.6 The author was brought before a military court on three occasions (23 and 26 December 1977 and 15 March 1978). On 23 December 1977, he recognized several of the individuals who had abducted him and who took part in the torture. That day also, he was given the possibility to choose an officially appointed lawyer, either Mr. Severino Barbé or Colonel Alfredo Ramírez. He opted for Mr. Barbé whom he saw that day and on 31 May 1978, 14 November 1978 and 12 February 1980. On 29 August 1979, the author was told by an official at Libertad prison that he had been sentenced to four and a half years of imprisonment at a trial that was held in camera on grounds of "conspiracy to subvert, action to upset the Constitution and criminal preparations". On 12 February 1980, he was brought before the Military Supreme Tribunal where he was informed by the military judge that the charge of attempt to upset the Constitution could not be confirmed, that he had served his sentence and that he would be expelled from Uruguay. On 15 February 1980, Miguel Angel Estrella was taken to the airport and he left Uruguay.

9.1 On the basis of the detailed information submitted by the author (see in particular paras. 1.10 to 1.16 above), the Committee is in a position to conclude that the conditions of imprisonment to which Miguel Angel Estrella was subjected at Libertad prison were inhuman. In this connection, the Committee recalls its consideration of other communications (see for instance its views on R.16/66 adopted at its seventh session) which confirm the existence of a practice of inhuman treatment at Libertad.

9.2 With regard to the censorship of Miguel Angel Estrella's correspondence, the Committee accepts that it is normal for prison authorities to exercise measures of control and censorship over prisoners' correspondence. Nevertheless, article 17 of the Covenant provides that "no one shall be subjected to arbitrary or unlawful interference with his correspondence". This requires that any such measures of control or censorship shall be subject to satisfactory legal safeguards against arbitrary application (see para. 21 of the Committee's views of 29 October 1981 on communication No. R.14/63). Furthermore, the degree of restriction must be consistent with the standard of humane treatment of detained persons required by

article 10 (1) of the Covenant. In particular, prisoners should be allowed under necessary supervision to communicate with their family and reputable friends at regular intervals, by correspondence as well as by receiving visits. On the basis of the information before it, the Committee finds that Miguel Angel Estrella's correspondence was censored and restricted at Libertad prison to an extent which the State party has not justified as compatible with article 17 read in conjunction with article 10 (1) of the Covenant.

10. The Human Rights Committee, acting under article 5 (4) of the Optional Protocol, is of the view that the facts, as found by the Committee, disclose the following violations of the International Covenant on Civil and Political Rights, in particular

of article 7, because Miguel Angel Estrella was subjected to torture during the first days of his detention (15-23 December 1977);

of article 10 (1), because he was detained under inhuman prison conditions;

of article 14 (1), because he was tried without a public hearing and no reason has been given by the State party to justify this in accordance with the Covenant;

of article 14 (3) (b) and (d), because he was unable to have the assistance of counsel of his own choosing to represent him and to prepare and present his defence;

of article 14 (3) (g), because of the attempts made to compel him to testify against himself and to confess guilt;

of article 17 read in conjunction with article 10 (1), because of the extent to which his correspondence was censored and restricted at Libertad prison.

11. The Committee, accordingly, is of the opinion that the State party is under an obligation to provide the victim with effective remedies, including compensation, for the violations he has suffered and to take steps to ensure that similar violations do not occur in the future.

Notes

a/ An opposition movement which engaged in armed activities.

b/ According to the author, the official Uruguayan radio station.

c/ A well-known Chilean singer and guitarist who was found dead, with his hands completely smashed, at the end of September 1973 in a stadium in Santiago, Chile.